

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #12	CCRB Case #: 201607201	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 08/20/2016 12:15 AM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 2/20/2018	Precinct: 34
Date/Time CV Reported Sat, 08/20/2016 2:55 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 08/20/2016 2:55 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Pena	25966	933160	034 PCT
2. POM Yowell Rosario	14945	946194	034 PCT
3. LT Warren Tom	00000	923260	034 PCT
4. POM Matthew Robayo	19758	959138	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Matthew Pena	Abuse: Police Officer Matthew Pena searched the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . LT Warren Tom	Abuse: Lieutenant Warren Tom entered § 87(2)(b) in the Bronx.	B . Alleged Victim Uncooperative
C . LT Warren Tom	Abuse: Lieutenant Warren Tom seized § 87(2)(b)'s property.	C . Exonerated
D . POM Matthew Pena	Abuse: Police Officer Matthew Pena threatened to arrest § 87(2)(b)	D . Exonerated
E . LT Warren Tom	Abuse: Lieutenant Warren Tom threatened to issue a summons to § 87(2)(b)	E . Exonerated
F . LT Warren Tom	Abuse: Lieutenant Warren Tom threatened to issue a summons to § 87(2)(b)	F . Exonerated
G . POM Matthew Pena	Abuse: Police Officer Matthew Pena threatened to seize § 87(2)(b)'s property.	G . Substantiated
H . POM Yowell Rosario	Force: Police Officer Yowell Rosario used physical force against § 87(2)(b)	H . Unsubstantiated
I . POM Matthew Pena	Force: Police Officer Matthew Pena used physical force against § 87(2)(b)	I . Unsubstantiated
§ 87(4-b) § 87(2)(g)	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Case Summary

On August 20, 2016, § 87(2)(b) and § 87(2)(b) filed this this complaint with the CCRB via the call processing system.

On August 20, 2016, at approximately 12:15 a.m., Lieutenant Warren Tom and Police Officer Matthew Pena, from the 34th Precinct, patrolled § 87(2)(b) in Manhattan, due to numerous noise complaints (**Board Review 19**). § 87(2)(b) and § 87(2)(b) had their vehicle parked in front of § 87(2)(b) also known as § 87(2)(b), an electronic store that installs music equipment into vehicles. § 87(2)(b) was also present during the incident. § 87(2)(b) played music from a speaker attached to his vehicle prior to the officers' arrival. PO Pena allegedly searched § 87(2)(b)'s vehicle (**Allegation A**). Lt. Tom entered § 87(2)(b), seized § 87(2)(b)'s speaker, and threatened to issue summons to § 87(2)(b) and § 87(2)(b) (**Allegations B, C, E, and F**). PO Pena threatened to arrest § 87(2)(b) threatened to seize § 87(2)(b)'s vehicle, and allegedly pushed § 87(2)(b) (**Allegations D, G, and I**).

Lt. Tom called for additional units to translate for § 87(2)(b) and § 87(2)(b) Police Officer Yowell Rosario and Police Officer Matthew Robayo, from the 34th Precinct, responded to the call. PO Rosario allegedly pushed § 87(2)(b) (**Allegation H**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) was issued summons no. § 87(2)(b) in violation of § 87(2)(b) (**Board Review 01**).

§ 87(2)(b) recorded portions of the incident via a cellphone (**Board Review 02**).



2016-11-16_10-18-11.mp4

Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) rejected mediation.
- As of November 17, 2016, § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim in regards to this incident (**Board Review 03**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first complaint filed by § 87(2)(b) and § 87(2)(b) (**Board Review 05**).
- PO Matthew Pena has been a member of the service for thirteen years and there are no substantiated CCRB allegations against him. § 87(2)(g)
- Lt. Warren Tom has been a member of the service for eighteen years and there are no substantiated CCRB allegations against him. § 87(2)(g).
- PO Yowell Rosario has been a member of the service for eight years and there are no substantiated CCRB allegations against him. This is PO Rosario's first CCRB complaint.

- PO Matthew Robayo has been a member of the service for one year and there are no substantiated CCRB allegations against him. This is PO Robayo's first CCRB complaint.

Findings and Recommendations

Allegation A: Abuse of Authority- Police Officer Matthew Pena searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b) played music from a large speaker connected to his vehicle, a 2015 4-door Kia Sorento, for approximately ten to fifteen minutes, prior to the officers' arrival.

§ 87(2)(b) stated that PO Pena and Lt. Tom arrived and, without saying anything to any of the civilians, PO Pena approached his vehicle, opened the driver side door, leaned into the vehicle, and turned the engine off. § 87(2)(b) stated that his vehicle was properly parked and the front passenger door and the door behind the front passenger were opened. The speaker, which is approximately two feet long and one foot high, was inside the vehicle **(Board Review 06)**.

According to § 87(2)(b) PO Pena and Lt. Tom first spoke with § 87(2)(b). She did not understand their conversation but she saw § 87(2)(b) provide his documentation to the officers. PO Pena then entered through the front passenger door and then the rear passenger door of § 87(2)(b)'s vehicle and checked underneath the seats for approximately three minutes. § 87(2)(b) also alleged that Lt. Tom removed the speaker from the vehicle and placed it on the roof of the vehicle **(Board Review 07)**.

§ 87(2)(b) who only provided a telephone statement, but was otherwise uncooperative, also stated that the ignition of § 87(2)(b)'s vehicle was on and that an officer entered through the passenger side and removed the key from the ignition. According to § 87(2)(b) the speaker was on the sidewalk **(Board Review 18)**.

The video recording does not depict this allegation **(Board Review 02)**.

PO Pena and Lt. Tom stated that they arrived at the incident location and observed a large speaker on the top of the vehicle playing loud music. The engine of the vehicle was running, but there was no one inside. There was a group of four to six people, including § 87(2)(b) and additional unidentified individuals gathered on the sidewalk. There were numerous empty beer bottles around them. PO Pena and Lt. Tom approached the group of individuals and asked who the owner of the vehicle was numerous times, but no one provided a response **(Board Review 08 and 09)**.

According to PO Pena, the individuals stated that they did not know who owned the vehicle. PO Pena told the individuals that they were going to take the vehicle if no one claimed it. § 87(2)(b) then walked towards the vehicle and tried to get past PO Pena's right side, which is where PO Pena carries his firearm. PO Pena stuck his hand out and placed it on the front passenger door of the vehicle to stop § 87(2)(b) from approaching the vehicle. § 87(2)(b) bumped into PO Pena's arm as she walked into him. PO Pena then reached into the vehicle and removed the keys from the ignition to prevent anyone from leaving and taking the vehicle or use it to hurt the officers **(Board Review 08)**.

Lt. Tom stated that after numerous efforts of identifying the owner of the vehicle and not obtaining a response, PO Pena reached into the vehicle through the driver side window, turned the ignition off, and removed the keys. Lt. Tom did not and did not see any officer further search the vehicle **(Board Review 09)**.

PO Rosario and PO Robayo did not see PO Pena search § 87(2)(b)'s vehicle and, based on all accounts, they were not present when this allegation occurred **(Board Review 10 and 11)**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B: Abuse of Authority- Lieutenant Warren Tom entered § 87(2)(b) in the Bronx.

Allegation C: Abuse of Authority- Lieutenant Warren Tom seized § 87(2)(b)'s property.
It is undisputed that Lt. Tom entered § 87(2)(b) and seized § 87(2)(b)'s speaker.

§ 87(2)(b) and § 87(2)(b) stated that the officers told § 87(2)(b) he was going to be issued a summons for making unreasonable noise and that the speaker was going to be vouchered as evidence. While PO Pena wrote the summons, § 87(2)(b) took the speaker and placed it inside his store. Lt. Tom asked where the speaker was and § 87(2)(b) stated that he put it away. Lt. Tom said that they could not take anything and § 87(2)(b) contested that the speaker was his. Lt. Tom entered the store and PO Pena followed him. § 87(2)(b) and § 87(2)(b) stated that the store door was closed, but it was unlocked. § 87(2)(b) and § 87(2)(b) told the officers that they could not enter the store. Lt. Tom and PO Pena walked about ten feet inside the store and Lt. Tom took the speaker and brought it outside. The officers repeated that the speaker was going to be taken as evidence and placed the speaker in the unmarked car **(Board Review 06 and 07)**.

§ 87(2)(b) who provided a telephone statement, but was otherwise uncooperative, stated that the door was closed but the door was not locked when Lt. Tom entered and removed the speaker **(Board Review 18)**.

The video recording shows Lt. Tom asking for the speaker and an unidentified male voice states, "Take it out from the business here." Lt. Tom repeats that he wants the speaker. The video recordings shows Lt. Tom and PO Pena approach the store. Lt. Tom stands outside of the business and talks to someone, but the individual is not depicted. Lt. Tom tells the unidentified individual, "Look. I want the speakers. Bring me the speaker back... You can't take it off." Then, Lt. Tom enters the store. § 87(2)(b) and an unidentified male state, "You can't do that... You can't go through... You're not supposed to go in there." Then, Lt. Tom walks out of the store carrying the speaker box **(Board Review 02)**.

PO Pena and Lt. Tom stated that they intended on issuing § 87(2)(b) a summons for making unreasonable noise and seizing the speaker as evidence for the summons. While PO Pena wrote the summons, § 87(2)(b) removed the speaker from the top of the vehicle and brought it inside the store. Lt. Tom told § 87(2)(b) that he could not take the speaker, but § 87(2)(b) did not comply. Consequently, Lt. Tom entered the store and seized the speaker. Lt. Tom was in the store for approximately two seconds and he did not do anything else while inside the store **(Board Review 08 and 09)**.

PO Pena issued § 87(2)(b) summons no. § 87(2)(b) in violation of § 87(2)(b) **(Board Review 01)**. PO Pena also prepared a voucher for the speaker **(Board Review 12)**.

Patrol Guide Procedure 214-23 directs officers to seize sound reproduction devices as evidence that the violator possessed the device and that the device was operable when issuing an unreasonable noise summons **(Board Review 13)**.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) As such, it is recommended that **Allegation B** be closed as **Victim Uncooperative**.

§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation C** be closed as **Exonerated**.

Allegation D: Abuse of Authority- Police Officer Matthew Pena threatened to arrest § 87(2)(b)

Allegation E: Abuse of Authority- Lieutenant Warren Tom threatened to issue a summons to § 87(2)(b)

Allegation F: Abuse of Authority- Lieutenant Warren Tom threatened to issue a summons to § 87(2)(b)

§ 87(2)(b) stated that she began recording the incident on her cellphone upon the officers' arrival. § 87(2)(b) stood approximately four feet away from the officers and did not get closer to the officers at any point. When PO Rosario arrived, he did not speak to § 87(2)(b) but stood as a barrier between her and the officers while the officers wrote the summons. PO Rosario stood about a foot away from § 87(2)(b). § 87(2)(b) attempted to walk around the officers to get in between the police cars and record the license plates. However, PO Rosario extended both hands towards § 87(2)(b) and pushed her once in the chest, causing § 87(2)(b) to take a step back. § 87(2)(b) later tried to move to the left to go to the rear of the police cars, but PO Pena also pushed her back. One of the officers said that he was going to issue summonses to everyone, but he did not provide a reason why. § 87(2)(b) stated that the officers repeatedly told her to move back, but § 87(2)(b) kept her distance from the officers throughout the incident **(Board Review 07)**.

§ 87(2)(b) corroborated that § 87(2)(b) recorded the incident with her cellphone and stood approximately five feet away from the officers. § 87(2)(b) described § 87(2)(b)'s demeanor as "a little hysterical," because their daughter cried during the incident, but he denied that § 87(2)(b) yelled at the officers. § 87(2)(b) added that § 87(2)(b) continuously asked for the speaker and

questioned why the officers were issuing § 87(2)(b) a summons. The officers instructed § 87(2)(b) to calm § 87(2)(b) down. § 87(2)(b) stated that PO Pena said he was going to issue summonses to everyone **(Board Review 06)**.

The video recording shows PO Pena tell § 87(2)(b) "Get her away because she's gonna go to jail." PO Pena and Lt. Tom walk out of the store and approach the curb. Lt. Tom states, "Now everybody getting a ticket just because you want to play silly." The camera moves to depict § 87(2)(b) appearing to speak with PO Pena. § 87(2)(b) extends his hands towards § 87(2)(b) and says, "Hey." PO Pena states, "Now I'm gonna take your car." Later in the video, PO Rosario is depicted standing on the sidewalk. § 87(2)(b) walks with to the right and PO Rosario says, "Miss. Do me a favor. Stay over there." § 87(2)(b) states, "I take a picture for the..." and she continues moving to the right, around PO Rosario. PO Rosario states, "I'm telling you... Hey..." An unidentified male voice says, "Come over here. Come over here." PO Rosario walks around and approaches § 87(2)(b). From the camera angle, PO Rosario is enough to § 87(2)(b) that his shield number is seen. The camera angle briefly moves to the left and then back to the right, and PO Rosario states, "I'm telling you... stay over there, okay?" § 87(2)(b) then states says in Spanish, "Don't touch my wife." § 87(2)(b) also states, "Don't touch me. Don't touch me." PO Rosario tells § 87(2)(b) in Spanish, "I've told her four times. Tell her to stay back." Unidentified male voices are heard stating, "Let them do their job... The officer told her more than 100 times to stay back. Be quiet. Don't talk. Can you be quiet for one second?.. He's a good guy. They're not going to leave if you continue like this. Don't talk. Be quiet. Can you be quiet for one second?" § 87(2)(b) states, "What do you want? What do you need? Put the ticket and that's it." An unknown male voice states in Spanish, § 87(2)(b) stay calm" **(Board Review 02)**.

PO Pena stated that § 87(2)(b) smelled of alcohol and was combative. § 87(2)(b) recorded the entire incident and got close to the officers many times. PO Pena only made contact with § 87(2)(b) when he extended his arm to stop her from approaching the vehicle and § 87(2)(b) bumped into his arm. PO Pena denied pushing § 87(2)(b) and he did not recall seeing any officer doing so. **(Board Review 08)**.

Lt. Tom stated that § 87(2)(b) walked back and forth recording the incident and the officers throughout the incident. The officers told § 87(2)(b) several times to stand back and not get closer to the officers, but she did not comply. Lt. Tom did not and did not hear any officer threaten to arrest any of the civilians, including § 87(2)(b) although she did interfere with the officers' investigation and could have been arrested. Lt. Tom did not and did not hear any officer say that he was going to issue summonses to everyone because there was no reason to do so. Lt. Tom was shown a video recording of the incident which depicts him stating, "Now everybody is getting a ticket just because you wanna play silly." Lt. Tom clarified that he believed he was speaking to § 87(2)(b) because he had brought the speaker into the store after being instructed not to do so. He noted that at the beginning of the recording he told § 87(2)(b) not to take the speaker and he did not comply. Lt Tom used his discretion and did not issue him a summons for interfering with his investigation **(Board Review 09)**.

PO Rosario stated that Lt. Tom instructed him to conduct crowd control by making sure the civilians stayed away from the officers who stood behind him writing summonses. § 87(2)(b) got in PO Rosario's face and recorded him with a cellphone. PO Rosario repeatedly told § 87(2)(b)

that she needed to step back. § 87(2)(b) complied, but continued getting close to PO Rosario **(Board Review 10)**.

§ 87(2)(g)

New York State Penal Law, Section 195.05 states that a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs, or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference **(Board Review 14)**.

§ 87(2)(g)

Therefore, it is recommended that **Allegations D, E, and F** be closed as **Exonerated**.

Allegation G: Abuse of Authority- Police Officer Matthew Pena threatened to seize § 87(2)(b)'s property.

§ 87(2)(b) and § 87(2)(b) stated that PO Pena threatened to take their vehicle, but he did not provide a reason why **(Board Review 06 and 07)**.

The video recording shows PO Pena appearing to speak with § 87(2)(b) PO Pena states, "Now I'm gonna take your car." **(Board Review 02)**.

PO Pena stated that, other than initially, when he did not know to whom the vehicle belonged, PO Pena did not threaten to seize the vehicle. When confronted with the video evidence, PO Pena stated that he did not know yet whether they had identified the owner of the vehicle **(Board Review 08)**.

Lt. Tom stated he did not know if he said that he was going to take the vehicle, although it was possible that he said this if they were unable to determine the owner of the vehicle. Lt. Tom did not recall hearing any officer say he was going to take the vehicle. **(Board Review 09)**.

Patrol Guide Procedure 218-01 states officers may seize property as arrest evidence, investigatory evidence, forfeiture, defendant's property, found property, safekeeping, peddler property, or to determine the property's owner **(Board Review 20)**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **Substantiated**.

Allegation H: Force- Police Officer Yowell Rosario used physical force against § 87(2)(b)

Allegation I: Force- Police Officer Matthew Pena used physical force against § 87(2)(b)

§ 87(2)(b) stated that she attempted to walk around the officers to get in between the police cars and record the license plates. PO Rosario extended both hands towards § 87(2)(b) and pushed her once in the chest, causing § 87(2)(b) to take a step back. § 87(2)(b) later tried to move to the left to go to the rear of the police cars, but PO Pena also pushed her back **(Board Review 07)**.

§ 87(2)(b) did not see when PO Rosario allegedly pushed § 87(2)(b) but he heard § 87(2)(b) state, "Don't push me." § 87(2)(b) did not corroborate that PO Pena pushed § 87(2)(b) **(Board Review 06)**.

The video recording shows PO Rosario standing on the sidewalk. § 87(2)(b) walks to the right and PO Rosario says, "Miss. Do me a favor. Stay over there." § 87(2)(b) states, "I take a picture for the..," and she continues moving to the right, around PO Rosario. PO Rosario states, "I'm telling you... Hey..." An unidentified male voice says, "Come over here. Come over here." PO Rosario walks around and approaches § 87(2)(b). From the camera angle, PO Rosario is close enough to § 87(2)(b) that his shield number is seen. The camera angle briefly moves to the left and then back to the right, and PO Rosario states, "I'm telling you... stay over there, okay?" It is not clear whether PO Rosario pushed § 87(2)(b) **(Board Review 02)**.

PO Rosario stated that Lt. Tom instructed him to conduct crowd control by making sure the civilians stayed away from the officers who stood behind him writing summonses. § 87(2)(b) got in PO Rosario's face and recorded him with a cellphone. PO Rosario repeatedly told § 87(2)(b) that she needed to step back. § 87(2)(b) complied, but continued getting close to PO Rosario. PO Rosario did not remember if he ever made contact with § 87(2)(b) and he did not recall pushing or seeing any officer pushing § 87(2)(b). PO Rosario viewed the video recording of the incident and he clarified that he tried preventing § 87(2)(b) from getting closer to the other officers and keep her at a safe distance. PO Rosario stated again that he did not remember if he made physical contact with § 87(2)(b) **(Board Review 10)**.

PO Pena stated that he only made contact with § 87(2)(b) when he extended his arm to stop her from approaching the vehicle and § 87(2)(b) bumped into his arm. PO Pena denied pushing § 87(2)(b) and he did not recall seeing any officer doing so **(Board Review 08)**.

Lt. Tom and PO Robayo denied seeing any officer push § 87(2)(b) **(Board Review 09 and 11)**.

§ 87(2)(g)
Therefore, it is recommended that **Allegations H and I** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date